

Court No. - 37

Case :- WRIT - C No. - 4684 of 2020

Petitioner :- Muhar Shri And 3 Others

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Vijay Singh Rathore

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Abhinava Upadhya,J.

Hon'ble Shamim Ahmed,J.

The petitioners claim that they are not even consumer of electricity under the Electricity Act, however, recovery citation has been issued against the petitioners for a sum of Rs.70,030/- on 14.10.2019.

Sri Baleshwar Chaturvedi, on the other hand submits that the dispute is with regard to the amount of bill which can be dealt with by the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

The petitioners may now file a detailed representation before the Executive Engineer, who shall consider the same and pass appropriate order in accordance with law within a period of two months.

For a period of two months, no coercive action shall be taken against the petitioners pursuant to the recovery citation dated 14.10.2019 (annexure 1 to the writ petition).

With the aforesaid observation/direction, the present writ petition is disposed of.

Order Date :- 10.2.2020

Ishan

(Shamim Ahmed,J.) (Abhinava Upadhya J.)